



File No.: EXP202413614

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against the CITY COUNCIL OF SANTIAGO DE COMPOSTELA with NIF P1507900G (hereinafter, the City Council), signs of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were noted, and actions were initiated under file number EXP202318432. In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer designated, if applicable, requesting that they send to this Agency the information and documentation indicated.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was received by the responsible party on December 20, 2023, as evidenced by the acknowledgment of receipt in the file.

On February 16, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigation actions, a request for information was sent to the City Council twice, regarding the complaint indicated in the first section, asking that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on both occasions in accordance with the rules established in the LPACAP and was received by the City Council on May 31 and September 9, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the City Council has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On October 10, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the City Council for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by the City Council on October 11, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the City Council.

Article 64.2.f) of the LPACAP - a provision of which the City Council was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that constituted the accusation, the infringement of the GDPR attributed to the City Council, and the sanction that could be imposed. Therefore, considering that the City Council has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

SECOND: The City Council has not responded to the requests for information made by this Agency within the timeframes granted for this purpose in the framework of the investigation actions of file EXP202318432.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the facts presented, it is considered that the City Council has not provided the information required by the Spanish Agency for Data Protection.

With the aforementioned conduct of the City Council, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the City Council, for violating Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions;"

III

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement, attributable to the City Council.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access to personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers."

IV

Imposed Sanction

Article 83.7 of the GDPR provides as follows:

"Without prejudice to the corrective powers of the control authorities under Article 58, paragraph 2,

each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable Regime for Certain Categories of Controllers or Processors” of the LOPDGDD states the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be taken to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

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4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF SANTIAGO DE COMPOSTELA, with NIF P1507900G, has infringed the provisions of Article 58.1 of the GDPR, an infringement classified under Article 83.5 of the GDPR.

SECOND: TO ORDER the CITY COUNCIL OF SANTIAGO DE COMPOSTELA, with NIF P1507900G, to provide, in accordance with the investigative power set forth in Article 58.1.a) of the GDPR, the information requested in the requirements made in the context of the proceedings numbered EXP202318432 and referred to in the background of this resolution, within ten working days from the date this resolution becomes final and enforceable.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: TO NOTIFY this resolution to the CITY COUNCIL OF SANTIAGO DE COMPOSTELA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions

of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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